



## CHAPTER cxix.

An Act to alter the boundary of the borough of Morecambe so as to include the urban district of Heysham to empower the Corporation to construct sea walls promenades and other works to acquire portions of Morecambe Harbour and for other purposes. A.D. 1928.  
—

[3rd August 1928.]

**W**HEREAS the borough of Morecambe in the administrative county of Lancaster is a municipal borough under the government of the mayor aldermen and burgesses of the borough of Morecambe (in this Act called "the Corporation") and the Corporation acting by the council of the borough are the sanitary authority for the borough with the powers and obligations of an urban sanitary authority :

And whereas the unrepealed provisions of the local Acts specified in Part I of the First Schedule to this Act and of the Orders specified in Part II of that schedule are in force in the borough :

And whereas the urban district of Heysham is situate in the administrative county of Lancaster and immediately adjoins the borough :

And whereas it is expedient to alter the boundary of the borough so as to include the urban district of Heysham (in this Act called "the Heysham district") :

And whereas the Heysham district is bounded on the north-west by the sea and in times of storm the sea encroaches upon the Heysham district and seriously



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A.D. 1928. — endangers the lands adjoining the sea both within the Heysham district and the existing borough of Morecambe :

And whereas a considerable portion of the borough and the Heysham district is low lying and below the level of high-water mark of ordinary spring tides and therefore unless adequately protected by sea defence works is in grave danger of being flooded in times of storm :

And whereas the only defences in the Heysham district against such encroachment have been constructed from time to time by the owners of the adjoining property for the protection thereof and consist in part of a sea wall and in part of certain groynes attached thereto but the groynes are out of repair and the wall is not continuous and cannot be relied on as a permanent protection against the action of the sea :

And whereas the prosperity of the borough as proposed to be altered as a health resort is largely dependent upon the preservation of the amenities of the sea front and for that purpose it is necessary that the sea wall and promenade described in this Act should be constructed and it is therefore expedient that the Corporation should be empowered to make and maintain the same together with the other works authorised by this Act :

And whereas the construction of the sea wall and promenade authorised by this Act will greatly benefit the lands adjoining the same and in proximity thereto and prevent danger from the sea to such lands and will relieve the owners thereof from the burden of expenditure for its protection and it is therefore expedient to authorise the imposition of an improvement rate on such lands towards defraying the cost of the construction of the said works :

And whereas it is expedient that the Corporation should be empowered by agreement with the London Midland and Scottish Railway Company to acquire the pier harbour jetty foreshore lands sidings and works in Morecambe known as Morecambe Harbour belonging to the said company or such portion or portions thereof as may be agreed and that the rights duties and obligations with regard thereto should be extinguished :



And whereas it is expedient that the other provisions contained in this Act be enacted : A.D. 1928  
 —

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

|                                                                                                  | £      |
|--------------------------------------------------------------------------------------------------|--------|
| For the construction of Work No. 1 authorised by this Act - - -                                  | 1,500  |
| For the purchase of land for and for the construction of Work No. 2 authorised by this Act - - - | 22,000 |
| For the purchase of land for and for the construction of Work No. 3 authorised by this Act - - - | 22,000 |
| For the purchase of land for and for the construction of Work No. 4 authorised by this Act - - - | 6,000  |
| For the purchase of land for and for the construction of Work No. 5 authorised by this Act - - - | 14,700 |

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act and of the lands upon which improvement rates or charges are imposed by this Act were duly deposited with the clerk of the peace for the county palatine of Lancaster which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent



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A.D. 1928. — Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Morecambe Corporation Act 1928.

Division of Act into Parts. 2. This Act is divided into Parts as follows :—  
Part I.—Preliminary.

Part II.—Alteration of boundary.

Part III.—Works lands and improvement rate.

Part IV.—Power to Corporation to acquire portions of Morecambe Harbour.

Part V.—Finance.

Part VI.—Miscellaneous.

Incorporation of general Acts. 3. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and are not varied by or inconsistent with this Act) are hereby incorporated with and form part of this Act (namely) :—

(1) The Lands Clauses Acts with the following exception and modification—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act :

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section :

(2) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and for the purposes of this Act such provision shall have effect as if the works by this Act authorised were referred



to instead of "the railway" and as if high- A.D. 1928.  
water mark of ordinary spring tides were  
referred to instead of "centre of the railway."

4.—(1) In this Act the several words and expres- Interpretation.  
sions to which meanings are assigned by the Acts wholly  
or partially incorporated herewith or by the Public  
Health Acts have the same respective meanings unless  
there be something in the subject or context repugnant  
to such construction.

(2) In this Act unless the subject or context other-  
wise requires—

"The appointed day" means the first day of October  
nineteen hundred and twenty-eight;

"The existing borough" means the borough of  
Morecambe as existing immediately before the  
appointed day;

"The extended borough" means the existing  
borough as extended by this Act;

"The borough" means until the appointed day the  
existing borough and thereafter the extended  
borough;

"The Corporation" means the mayor aldermen and  
burgesses of the borough acting by the council;

"The council" means the council of the borough;

"The town clerk" "the treasurer" and "the  
surveyor" mean respectively the town clerk  
the treasurer and the surveyor of the borough  
and respectively include any person duly autho-  
rised to discharge temporarily the duties of  
those offices;

"The county" and "the county council" mean  
respectively the administrative county of Lan-  
caster and the county council of that county;

"The borough map" means the map marked "Map  
" of the borough of Morecambe as altered by  
" the Morecambe Corporation Act 1928 to  
" include the urban district of Heysham and  
" renamed the borough of Morecambe and  
" Heysham" and signed in triplicate by the  
Right Honourable the Earl of Wemyss the  
Chairman of the Committee of the House of



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Lords to which the Bill for this Act was referred of which copies are to be deposited as mentioned in the section of this Act of which the marginal note is "Deposit of maps";

"The ward map" means the map marked "Map of the wards of the borough of Morecambe as altered by the Morecambe Corporation Act 1928 to include the urban district of Heysham and renamed the borough of Morecambe and Heysham" and signed in triplicate by the Right Honourable the Earl of Wemyss the Chairman of the Committee of the House of Lords to which the Bill for this Act was referred of which copies are to be deposited as mentioned in the section of this Act of which the marginal note is "Deposit of maps";

"The Heysham district" means the existing urban district of Heysham and "the Heysham Council" means the urban district council of the said existing district;

"The added area" means the Heysham district added to the existing borough by this Act;

"The parish of Morecambe and Heysham" means the existing parishes of Morecambe and Heysham as united by this Act;

"The Lancaster Union" and "the Lancaster Guardians" mean respectively the poor law union bearing that name and the board of guardians of that union;

"The Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;

"The Lands Clauses Acts" means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;

"The Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same;

"The Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;



“The Act of 1907” means the Public Health Acts Amendment Act 1907; A.D. 1928.  
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“The Act of 1925” means the Rating and Valuation Act 1925;

“Existing” in relation to any area altered by this Act means existing immediately before the appointed day;

“Local authority” means a local authority as defined in section 34 (Definitions) of the Local Loans Act 1875 and includes a standing joint committee of a county;

“Officer” includes a servant and any person whose remuneration is paid by a local authority;

“The Minister” means the Minister of Health;

“The works” means the works and improvements in connection therewith authorised by this Act;

“The tramway undertaking” means the tramway undertaking of the Corporation as for the time being authorised;

“The tribunal” means the tribunal to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“The Act of 1918” means the Morecambe Corporation Act 1918;

“The Act of 1924” means the Morecambe Corporation Act 1924;

“The local Acts” means the local Acts specified in Part I of the First Schedule to this Act and the Orders specified in Part II of that schedule and so much of the confirmation Acts specified in that Part as relates to any of those Orders;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough or until the date when the first new valuation list made under Part II of the Act of 1925 comes into force in the borough the borough fund and borough rate of the borough;

“Provisional Order” includes a Special Order and an order having effect as an Act of Parliament.



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PART II.

ALTERATION OF BOUNDARY.

Commence-  
ment of this  
Part of Act.

5. This Part of this Act shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject matter or context inconsistent therewith come into operation on the appointed day :

Provided that for the purposes of all proceedings preliminary or relating to any election to be held for any area constituted or affected by this Part of this Act in the year nineteen hundred and twenty-eight this Part of this Act shall operate from the date of this Act.

Alteration  
of boundary  
of borough.

6.—(1) The boundary of the existing borough shall be altered so as to include in addition to the area of the existing borough the Heysham district.

(2) The boundary of the extended borough shall be that shown by the inner edge of the red line on the borough map and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the borough.

Alteration  
of parishes.

7. The existing parish of Heysham shall be added to the existing parish of Morecambe and the united parish shall be known as the parish of Morecambe and Heysham and shall form part of the Lancaster Union.

Name of  
borough.

8. The borough shall for all purposes be known as the borough of Morecambe and Heysham.

Deposit of  
maps.

9.—(1) The borough map and the ward map respectively shall within two weeks after the passing of this Act be deposited as to one copy in the office of the Clerk of the Parliaments in the House of Lords as to another copy in the Committee and Private Bill Office of the House of Commons and as to the third copy with the town clerk at his office.

(2) Copies of the borough map deposited with the town clerk certified by him to be true shall be sent by him within one month after the passing of this Act to the clerk of the county council to the clerk to the Lancaster Guardians to the Minister to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Postmaster-General to the



Board of Trade to the Minister of Transport to the Minister of Agriculture and Fisheries and to the Electricity Commissioners and copies of the ward map so deposited and certified in like manner shall be sent within the said period to the Minister to the Registrar-General and to the Minister of Agriculture and Fisheries. A.D. 1928.

(3) Copies of or extracts from the borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the borough map so far as it relates to the boundaries of the borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(4) All fees so received shall be carried to the credit of the general rate fund.

10. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of the number and boundaries of wards and the number of councillors the following provisions shall have effect:—

Number of councillors and aldermen and division into wards.

- (1) The number of councillors of the borough shall be increased from eighteen to twenty-seven and the number of aldermen shall be increased from six to nine :
- (2) For the purpose of the election of councillors the borough shall be divided into the nine wards set out in the Second Schedule to this Act and each of the wards shall be designated by the name appearing in that schedule :
- (3) The wards of the existing borough and the number of councillors respectively apportioned thereto shall remain unaltered :
- (4) So much of the borough as comprises the Heysham district shall constitute three new wards to be named respectively the Heysham North Ward Heysham Central Ward and the Heysham South Ward and each of which wards are designated by a colour and distinguished by the name of the ward on the ward map :
- (5) Three councillors shall be assigned to each of the said new wards.



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First election of councillors for new wards and additional aldermen.

11. The first election of councillors for the new wards shall be held in September nineteen hundred and twenty-eight and the first election of the additional aldermen of the borough in October of the same year and the following provisions shall apply to the elections :—

- (1) The mayor and the town clerk of the existing borough or such other persons as the Secretary of State may appoint shall perform the duties devolving upon a mayor and town clerk respectively under the Municipal Corporations Acts and the mayor shall be the returning officer at the election for all the wards but may appoint some other person to act as returning officer at the election for any of the wards :
- (2) The additional aldermen then to be elected shall be chosen from among the councillors elected for the Heysham North Ward the Heysham Central Ward or the Heysham South Ward or from among the persons qualified to be councillors whose qualification is in respect of any of those wards.

Retirement of councillors for new wards and of additional aldermen.

12.—(1) The councillors elected for each of the new wards in the year one thousand nine hundred and twenty-eight shall retire as follows :—

- (a) The councillor who is elected by the smallest number of votes on the first day of November one thousand nine hundred and twenty-nine ;
- (b) The councillor who is elected by the largest number of votes on the second day of November one thousand nine hundred and thirty-one ;
- (c) The other councillor on the first day of November one thousand nine hundred and thirty.

(2) The three additional aldermen elected for the borough in the year one thousand nine hundred and twenty-eight shall retire as follows :—

- (a) The alderman elected by the smallest number of votes on the ninth day of November one thousand nine hundred and thirty ;
- (b) The other two aldermen on the ninth day of November one thousand nine hundred and thirty-three.



(3) If for any reason it is doubtful which of the aldermen or councillors ought to retire on the dates above specified the council of the borough shall on the ninth day of November one thousand nine hundred and twenty-eight or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the aldermen or councillors shall go out of office on the dates above specified respectively.

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**13.** The first meeting of the council shall be held on the fourth day of October one thousand nine hundred and twenty-eight.

First meeting of council.

**14.** For the purposes of the application to the borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the borough.

County and Borough Councils (Qualification) Act 1914.

**15.** For the purpose of the election of county councillors the existing Morecambe Electoral Division and the South Lonsdale Electoral Division of the county shall not be altered and the existing representation of such two divisions on the county council shall remain and continue.

County electoral divisions.

**16.—(1)** The powers and duties of the justices of the peace for the existing borough and of the clerk to those justices shall extend to and apply throughout the borough :

Jurisdiction of borough justices &c. extended.

Provided that—

(a) every person committing an offence in the added area prior to the appointed day shall be tried and dealt with as if this Act had not been passed;

(b) every proceeding which prior to the appointed day has been begun by or before any justice in relation to any matter arising in or concerning any part of the added area may be continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

(2) The added area shall cease to form part of any petty sessional division of the county.



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Officers of  
Corporation  
continued.

17. The town clerk and all other officers of the Corporation of the existing borough who hold office at the appointed day shall continue to be the town clerk and officers of the Corporation of the borough and shall hold their offices by the same tenure as on the appointed day.

Auditor.

18. The auditor of the existing borough appointed under the provisions of the Act of 1924 who is in office on the appointed day shall continue in office for such period as may be necessary to enable him to complete the audit of the accounts of the Corporation of the treasurer and of their officers for the financial year ending on the thirty-first day of March nineteen hundred and twenty-nine and while in office shall for the purposes of those accounts be the appointed auditor.

Corporation  
property &c.

19. Subject to the provisions of this Part of this Act all property vested in the Corporation at the appointed day for the benefit of the existing borough (not being property held for any charitable trust) shall by virtue of this Part of this Act be held by the Corporation for the benefit of the borough and the Corporation shall hold enjoy and exercise for the benefit of the borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing borough shall from and after that date attach to them in respect of the borough.

Local Acts  
and Orders.

20.—(1) Subject to the provisions of this Act the unrepealed provisions of—

- (a) the local Acts and confirmation Acts specified in the First Schedule to this Act so far as such confirmation Acts respectively relate to the Provisional Orders specified in that schedule;
- (b) any other local Act or Provisional Order duly confirmed and affecting the existing borough or the Corporation (including any such Act or Order passed or confirmed during the present session of Parliament); and
- (c) any order affecting the existing borough or the Corporation which has effect as if enacted by Parliament;



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as the same respectively are in force within the existing borough immediately before the appointed day shall extend and apply to the borough and any reference therein to the existing borough and the Corporation shall be deemed to refer to the borough and the Corporation thereof.

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(2) The provisions of any protective enactment for the benefit of the county council the Heysham Council (or the predecessors of either of those councils) contained in any local Act confirmation Act or Provisional Order (by whomsoever obtained) shall in respect of all matters relating to or affecting any part of the added area enure to the benefit of the Corporation and shall be construed as if a reference to the Corporation were substituted for any reference to such council (or their predecessors) as the case may be.

**21.**—(1) The provisions of section 35 (Water supply to Morecambe Corporation) of the Lancaster Corporation Act 1918 as amended by this section shall apply with regard to the supply of water to the added area in lieu of the provisions of section 36 (Supply of water to Heysham Urban District Council) of that Act and the said section 36 (with the exception of subsections (5) and (6) thereof) is hereby repealed but nothing in this Part of this Act shall alter or affect the extent of the limits for the supply of water by the corporation of Lancaster as existing immediately before the commencement of this Act.

Amendment  
of Lancaster  
Corporation  
Act 1918  
in regard to  
supply of  
water in  
added area.

(2) Subsection (6) of the said section 36 shall apply throughout the whole of the extended borough.

(3) Notwithstanding anything contained in subsection (2) of the said section 35 the maximum quantity of water to be supplied by the corporation of Lancaster to the Corporation in any day of twenty-four hours shall unless increased as provided by this section be one million and fifty thousand gallons Provided that the Corporation shall be entitled from time to time by twelve months or if no additional works are required by three months' previous notice in writing served upon the Lancaster Corporation to increase the said maximum quantity and from and after the expiration of every such notice as aforesaid the quantity specified therein shall be the quantity of water required to be supplied by the Lancaster Corporation and the Lancaster Corporation



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A.D. 1928. shall at all times deliver the water at a pressure of not less than sixty pounds per square inch Unless otherwise agreed between the Lancaster Corporation and the Corporation seven hundred and fifty thousand gallons of the said maximum quantity shall be delivered daily at the meter house referred to in subsection (3) of the said section 35 and the remaining three hundred thousand gallons at the meter referred to in subsection (5) of the said section 36 and so in proportion for any other additional quantity.

(4) Paragraph (c) of subsection (4) of the said section 35 shall be read and have effect as though the word "ten" had been inserted therein in lieu of the word "twenty" and as though the following words had been added at the end of the said paragraph "Provided that the minimum additional quantity which may be demanded under this paragraph shall be one hundred and fifty thousand gallons per day."

(5) Paragraph (a) of subsection (4) of the said section 35 shall be read and have effect as though the words "on the thirtieth day of September one thousand nine hundred and thirty and on the thirtieth day of September in every subsequent period of seven years" had been inserted therein in lieu of the words "not earlier than ten years after the commencement of this section and again from time to time by similar notice to expire not earlier than the period of twenty years after the last preceding notice."

Water rates  
and charges.

**22.** The prices to be charged by the Corporation for water supplied to consumers and the terms and conditions on which the supply shall be given shall be the same in all respects throughout the extended borough.

Adoptive  
Acts.

**23.**—(1) The provisions of the Public Health Acts Amendment Act 1890 the Infectious Disease (Prevention) Act 1890 the Health Resorts and Watering Places Act 1921 and the Public Health Act 1925 which are in force in the existing borough shall be in force in and apply to the borough as if the same had been adopted for the borough.

(2) The provisions of any adoptive Acts other than the Acts mentioned in subsection (1) of this section shall cease to be in force in any part of the added area.



(3) Any order under the Infectious Disease (Notification) Act 1889 or under any adoptive Act mentioned in subsection (1) of this section which is in force at the appointed day throughout the existing borough shall extend and apply to the added area and any such order in force on the day aforesaid in the added area shall save as hereinbefore provided cease to be in force in that area.

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24. For the purposes of the Small Dwellings Acquisition Acts 1899 to 1923 and the Notification of Births Acts 1907 and 1915 the Corporation shall be the local authority for the borough.

Corporation to be local authority for certain Acts.

25. Subject to any order which the Minister or the Secretary of State may make after the appointed day the following provisions shall have effect as regards orders under the Act of 1907 or the Public Health Act 1925 :—

Powers under Act of 1907 and Public Health Act 1925.

(1) The provisions of any order made before the appointed day whereby any parts or sections of either of those Acts are in force in the existing borough shall have effect as if any reference in that order to the borough as it existed at the date of such order extended and applied to the borough and as if the said parts or sections were accordingly declared to be in force in the borough :

(2) Any other order under either of those Acts which is in force at the appointed day throughout the existing borough shall extend and apply to the added area :

(3) The provisions of any order made before the appointed day and declaring to be in force in any part of the added area any parts or sections of either of those Acts shall cease to apply to any such part and subject to the provisions of this section the parts or sections declared by any such order to be in force shall cease to be in force in any such part but this provision shall not prejudice or affect any proceedings which are pending on the appointed day.

26. Subject to the provisions of any order which the Minister may make after the appointed day—

Orders under section 33 of Act of 1894.

(1) The provisions of any order made before the appointed day under section 33 of the Act of



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1894 on the application of the Corporation (so far as such provisions are still in force or still have effect) shall have effect as if any reference in those provisions to the existing borough and the existing parish of Morecambe extended and applied to the extended borough and the extended parish as the case may be :

Provided that nothing in this section shall extend to the added area the provisions of the order of the Local Government Board dated the tenth day of July one thousand eight hundred and ninety-six relating to the powers duties and liabilities of a parish council under section 14 of the Act of 1924 :

- (2) An order may be made by the Minister under section 33 of the Act of 1894 with respect to any charity held wholly or partly for the benefit of the inhabitants of any existing parish affected by this Part of this Act as if this Act had not been passed.

Orders  
under Shop  
Hours Act  
1904 or  
Shops Acts  
1912 to  
1920.

27. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the appointed day in any area affected by this Part of this Act shall subject to the provisions of such Acts remain in force and apply to the area to which it applied immediately before the appointed day.

Land  
charges  
register for  
Heysham.

28.—(1) The local registrar for the Heysham district under the Land Charges Act 1925 and the rules made thereunder shall on the appointed day deliver to the town clerk as the local registrar for the borough the local land charges register of the said district and all documents relating to that register.

(2) The town clerk as local registrar for the borough shall within one month after the receipt of the register and documents mentioned in subsection (1) of this section incorporate that register with any necessary modifications in the appropriate part of the local land charges register of the borough.

Saving for  
entries in  
local land

29. Where a local land charge duly registered in the local land charges register of the Heysham district is in pursuance of this Act transferred from the Heysham



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Council to the Corporation as provided for in the immediately preceding section of this Act such charge shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the local land charges register of the borough. A.D. 1928.  
charges  
register.

**30.**—(1) All byelaws made under the Public Health Acts and in force within the existing borough or within the added area immediately before the appointed day shall— Byelaws.

- (a) if made before the first day of January nineteen hundred and fifteen continue to apply to the existing borough or to the added area as the case may be for three years after the appointed day (unless previously repealed or altered by the Corporation) but shall on the expiry of three years cease to be in force within the borough;
- (b) if made on or after the first day of January nineteen hundred and fifteen continue to apply to the existing borough or to the added area as the case may be until repealed or altered by the Corporation.

(2) Any such byelaws in force in the existing borough may by a byelaw made in accordance with sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority be extended with or without modification to the added area.

(3) All other byelaws made by the Corporation or by the watch committee of the existing borough and in force immediately before the appointed day shall apply to the borough until repealed or altered and all byelaws made by the county council or the standing joint committee shall on that day cease to apply within the added area.

(4) In their application to the added area any byelaws continued in force by this section shall have effect as if they had been made by the Corporation and as if the added area were referred to therein instead of the area to which they now apply.

(5) Any proceedings which if this Act had not been passed might have been taken for any offence against



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(6) In this section "byelaws" includes any regulation scale of charges list of tolls or table of fees or payments and the phrase "byelaws made under the Public Health Acts" means byelaws which under the Ministry of Health Act 1919 are subject to confirmation by the Minister whether made before or after the passing of that Act.

Town  
planning  
schemes.

**31.** Any resolution passed or other proceeding taken by the Heysham Council under the Town Planning Act 1925 or any enactment thereby repealed (including agreements orders and consents entered into made or given under that Act or repealed enactment) shall in so far as they relate to land within the added area have effect as if they had been passed or taken by the Corporation in respect of the added area.

As to exist-  
ing poor law  
orders.

**32.** All poor law orders in force immediately before the appointed day in the Lancaster Union and applicable to the existing parish of Morecambe shall extend and apply to the parish of Morecambe and Heysham.

Transfer of  
public ele-  
mentary  
schools &c.  
to Cor-  
poration.

**33.** As from the first day of April nineteen hundred and twenty-nine (in this section referred to as "the date of transfer") for the purposes and subject to the provisions of the Education Act 1921—

(1) All public elementary schools provided by the county council as local education authority and situate in the added area and the furniture fittings books and apparatus belonging to the county council of any public elementary school in the added area shall by virtue of this Act be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the county council as the local education authority :

(2) All contracts debts and liabilities which at the date of transfer are existing or are owing by or attach to the county council in respect exclusively of any public elementary school in the added area or of the furniture fittings books or apparatus or with respect to the officers and teachers of any public elementary



school in the added area and to school attendance officers school nurses and other persons employed whole time in connection with education services exclusively in the added area shall by virtue of this Act enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority :

A.D. 1928.  
—

(3) Section 68 (Adjustment of property and liabilities) of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this section :

(4) Subject to any adjustment which may hereafter be made the liability for the repayment of so much of any loan raised exclusively in respect of any public elementary school or in respect of the furniture fittings or apparatus transferred to and vested in the Corporation by virtue of this Act as will be owing at the date of transfer and the liability for the payment of interest on that part of the said loan shall by virtue of this Act be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the date of transfer shall be charged on the general rate fund and the general rate and shall be repaid by the Corporation within the period for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable :

(5) In this section "public elementary school" includes the site and school house and also any land acquired and held by the county council as the local education authority for purposes of elementary education.

**34.**—(1) Any byelaws under the Education Act 1921 or any enactment repealed by that Act which may be in force in the existing borough immediately before the appointed day shall apply to the borough until revoked or altered by the Corporation in substitution for any such byelaws which may be in force in the added area.

Education  
byelaws and  
managers.



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*Act, 1928.*

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(2) Every manager of any elementary school in the added area who was appointed by the county council or nominated by the Heysham Council shall vacate office at the appointed day.

Dissolution  
of Heysham  
Council.

**35.** Subject to the provisions of this Act and to any necessary adjustment—

(a) The Heysham Council shall be abolished and shall cease to exist;

(b) All property or liabilities which immediately before the appointed day are vested in or attach to that council shall by virtue of this Act be transferred to vest in or attach to the Corporation as urban authority for the execution of the Public Health Acts.

Settlement  
of poor.

**36.** Every person who at any time before the appointed day has acquired or who immediately before that day is in the course of acquiring a settlement in the existing parish of Morecambe or the existing parish of Heysham by reason of residence birth or other qualification therein shall be deemed to have acquired or to be in the course of acquiring a settlement in the parish of Morecambe and Heysham.

Mortgage  
debts of  
Heysham  
Council and  
of Corpora-  
tion.

**37.—**(1) Subject to the provisions of this Act—

(a) So much of any moneys borrowed by the Heysham Council (or by their predecessors) as immediately before the appointed day are owing and charged upon the funds or rates of that council together with so much of any sums borrowed by the Corporation as immediately before that day are owing and charged upon a fund or rate of the existing borough shall be charged upon the revenues of the Corporation and the general rate fund and the general rate of the borough;

(b) All borrowed moneys to which this section applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.



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(2) Nothing in this Act shall prejudice or affect any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which is transferred from the Heysham Council to the Corporation by this section or the powers of any person entitled under any such mortgage or other security to enforce the same as if this Act had not been passed and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Act the power may continue to be exercised as if this Act had not been passed. A.D. 1928

**38.** The total amount in the pound of the consolidated or general rate (after deducting from such total amount such part thereof as is made and levied to meet any precept issued by the Lancaster Guardians) to be made and levied by the Corporation upon any rateable hereditament situate in the part of the borough which comprises the added area shall in each of the years specified in the Third Schedule to this Act be less than the total amount in the pound of the consolidated or general rate (after deducting as aforesaid) to be made and levied by the Corporation in the same year upon any such hereditament within that part of the borough which prior to the appointed day comprised the existing borough by the sum stated in the said schedule under the year in question. Differential rating in added area.

**39.** The number of representatives to be appointed by the Corporation on the assessment committee for the Lancaster assessment area constituted under the County of Lancaster (Assessment Areas and Assessment Committees) Scheme 1926 shall be three and the persons now acting as the representatives of the council and of the Heysham Council on the said committee shall continue in office as the representatives of the council until the expiration of the period for which they were appointed. Representatives on assessment committee.

**40.** Until new valuation lists come into force the valuation lists of the existing parish of Morecambe and the existing parish of Heysham shall form the valuation list of the parish of Morecambe and Heysham and the first draft valuation lists of the existing borough and the Heysham district prepared under Part II of the Act Valuation lists.



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A.D. 1928. — of 1925 shall together be deemed to be the draft valuation lists for the borough.

Guardians of  
Lancaster  
Union and  
parish of More-  
cambe and  
Heysham.

41. The number of the guardians of the Lancaster Union shall be forty-seven and the number of guardians of the parish of Morecambe and Heysham shall be nine.

Division of  
parish of  
Morecambe  
and Hey-  
sham into  
wards.

42.—(1) Subject to the provisions of the Poor Law Act 1927 the parish of Morecambe and Heysham shall for the purposes of the election of guardians be divided into nine wards which shall be respectively co-terminous with and shall bear the same names as the municipal wards of the borough.

(2) One guardian shall be assigned to each of the wards of the parish of Morecambe and Heysham.

(3) The persons who are at the appointed day members of the Lancaster Guardians for the existing parish of Morecambe shall continue in office as guardians representing the wards of the parish of Morecambe and Heysham bearing the same names as the wards of the existing parish of Morecambe until the day on which they would have retired if this Act had not been passed and shall then go out of office.

(4) The two persons who at the appointed day are guardians representing the parish of Heysham shall be assigned to the Heysham North Ward and the Heysham Central Ward and shall continue in office until the day on which they would have retired if this Act had not been passed and shall then go out of office.

The guardians shall at a meeting to be held before the appointed day decide which of the said two persons shall be assigned to the Heysham North Ward and which to the Heysham Central Ward.

(5) An election of an additional guardian of the poor for the Heysham South Ward of the parish of Morecambe and Heysham shall be held as soon as conveniently may be on a date to be fixed by the county council and the guardian so elected shall come into office forthwith.

(6) Subject as hereinafter provided and to any directions which may be given by the Secretary of



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State the said election shall be conducted in conformity with the rules contained in the Guardians (Outside London) Election Order 1898 as amended by the Local Elections (Alteration of Rules) Order 1925 as if it were an election to fill an ordinary vacancy in the office of guardian. A.D. 1928.

(7) For the purposes of the election of a guardian for the ward mentioned in subsection (5) of this section the clerk to the Lancaster Guardians or if he is unable to act such other person as the said guardians may appoint shall be the returning officer.

(8) The guardian of the parish of Morecambe and Heysham elected in pursuance of this section for the said Heysham South Ward shall (subject to any orders which may be made under the Act of 1888 or the Poor Law Act 1927) retire and go out of office on the same day as the guardians representing the other wards of the said parish retire and go out of office.

43.—(1) As soon as practicable after the appointed day the county council shall as regards any cash balance in their hands immediately before that day estimate the proportion thereof derived from county contributions in respect of elementary education paid by the Heysham Council and subject to a deduction on account of undis- charged liabilities in respect of the Heysham district accruing up to the appointed day shall transfer such amount to the Corporation. Apportion- ment by county council of balances and sums received under pre- cepts.

(2) Any sum received on or after the appointed day by the county council under a precept issued before that day in respect of the Heysham district shall be dealt with in the manner prescribed by subsection (1) of this section.

(3) The apportionment under this section of any balance or any sum received under a precept shall be subject to review on an adjustment under this Part of this Act.

44. Subject to the provisions of this Part of this Act section 62 (Adjustment of property and liabilities) of the Act of 1888 shall apply to any adjustment which may become necessary in consequence of this Part of this Act and for the purposes of such application that section shall have effect— Adaptation of pro- visions as to adjustment

(a) As if in subsections (5) (6) and (7) thereof the expression "council" included any authority



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affected by this Part of this Act or by anything done in pursuance of this Part of this Act; and

- (b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction.

Provisions  
as to register  
of electors.

45.—(1) In the preparation of the register of local government electors in nineteen hundred and twenty-eight so far as it relates to any area affected by this Part of this Act it shall be competent to the registration officer for the parliamentary county of Lancaster to frame the register in separate parts for each area which will constitute a registration unit after the appointed day instead of in separate parts for each area constituting a registration unit before the appointed day.

(2) If the register of local government electors for any electoral area affected by this Part of this Act is not so framed as to show the persons entitled to vote at an election to be held for a parish or ward or other voting area the registration officer for the parliamentary county of Lancaster shall make such alteration or rearrangement of the register as may be necessary for the purposes of such election.

(3) It shall be the duty of the town clerk and of any officer designated under article 3 of the Overseers Order 1927 by the Corporation for the performance of the duties of overseers in relation to the preparation of the register of electors to render such assistance as may be required by any registration officer for the purpose of any alteration or rearrangement authorised by subsection (2) of this section.

(4) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary or



desirable to give effect to the provisions of this Part of this Act and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors. A.D. 1928.  
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46. For the purposes of any valuation list to be prepared under the Act of 1925 the amount of the deduction to be made from net annual value in the ascertainment of the rateable value of such rateable hereditaments within the added area as are included in class (3) of the hereditaments specified in column (1) of Part II of the Second Schedule to that Act shall be 42 per cent. Deduction in ascertaining rateable value of tithes railways canals &c.

47.—(1) All rate books books of account minutes of proceedings deeds papers and writings belonging to the Heysham district and all documents directed by law to be kept with the public books writings and papers of that district except any book or document relating to ecclesiastical matters shall be deposited in such custody as the Corporation may direct. Parish books and documents.

(2) Any ratepayer of the district aforesaid shall at all times have the same right of inspection and of making extracts from the books minutes deeds papers or writings referred to in this section which he would have had if this Act had not been passed.

48.—(1) The accounts of the Heysham Council shall be made up to the appointed day and shall be audited by the district auditor in like manner and subject to the like incidents and consequences as if this Act had not been passed. Audit of accounts of Heysham Council.

(2) Any sum certified by the district auditor to be due from any person at the audit of the accounts to which this section applies shall be paid to the treasurer but shall be a matter for adjustment under section 62 of the Act of 1888.

(3) This section shall apply to the accounts of any committee or officer of the said council as it applies to the accounts of that council.

49.—(1) Subject to the provisions of this Part of this Act all or any of the persons who at the commencement of this Part of this Act are officers of the Heysham Council or officers employed whole time by the county council exclusively in the added area may if the Existing officers of Heysham Council &c.



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A.D. 1928. Corporation think fit be transferred to and become officers of the Corporation.

(2) Every officer so transferred shall hold his office by the same tenure and upon the same terms and conditions as if this Act had not been passed and while performing analogous duties to those which he was required to perform immediately before the appointed day shall receive not less salary or remuneration and be entitled to not less pension (if any) than the salary remuneration or pension to which he would have been entitled if this Act had not been passed.

(3) The Corporation may distribute the business to be performed by the transferred officers in such manner as the Corporation may think proper and every officer shall perform such duties in relation to that business as may be directed by the Corporation and the Corporation may abolish the office of any officer.

(4) If at any time within five years after the appointed day any transferred officer is required by the Corporation to perform duties which are not analogous to or which are an unreasonable addition to those which he was required to perform immediately before the appointed day the officer may relinquish his office.

Compensation to existing officers.

50.—(1) Every officer in office at the passing of this Act who by virtue of this Part of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by determination of his appointment or by diminution or loss of fees or salary or emoluments (and for whose compensation for that loss no other provision is made by any enactment for the time being in force) shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss.

(2) Any transferred officer who relinquishes his office under subsection (4) of the section of this Act of which the marginal note is "Existing officers of Heysham Council &c." or any officer whose services are dispensed with or whose salary is reduced within five years after the appointed day because his services are not required or his duties are diminished in consequence of this Part of this Act and not on the ground of misconduct shall be deemed unless the contrary is shown to have suffered



a direct pecuniary loss in consequence of this Part of A.D. 1928.  
this Act.

**51.**—(1) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Part of this Act regard shall be had to the conditions and circumstances mentioned in subsection (1) of section 120 (Compensation to existing officers) of the Act of 1888 and the compensation shall not exceed the limit therein mentioned. Determina-  
tion of com-  
pensation.

(2) Any compensation payable under this Part of this Act to any officer shall be paid out of the general rate fund and general rate and the provisions of section 120 of the Act of 1888 shall apply subject to the following and any necessary modifications :—

- (a) Any reference in that section to the county council shall be construed as a reference to the Corporation;
- (b) References in that section to “ the passing of this Act ” shall be construed as references to the date on which the direct pecuniary loss commences;
- (c) The expression in subsection (1) of that section “ the Acts and rules relating to Her Majesty’s Civil Service ” shall mean the Acts and rules relating to Her Majesty’s Civil Service which were in operation at the date of the passing of the Act of 1888;
- (d) The references in subsections (4) and (6) of that section to the Treasury shall be deemed to be references to the Minister;
- (e) The words “ any local authority as defined by “ the Local Government and other Officers’ “ Superannuation Act 1922 ” shall be substituted for the words “ the same or any other county council ” in subsection (7) of that section.

(3) The compensation payable under this Part of this Act to an officer who immediately before the appointed day held two or more offices under any local authority or local authorities and who devoted the whole of his time to the duties of such offices shall not be reduced by reason of the fact that he has devoted only part of his time to each of such offices.

(4) In computing the time of service in any capacity of any officer for the purpose of determining the compen-



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A.D. 1928. — sation to which he is entitled under this Act the Corporation shall take into account all the service of any such officer (after the attainment of the age of eighteen years) in any capacity under any local authority whether such officer has been appointed annually or otherwise and where the aggregate service exceeds any number of complete years any portion of an incomplete year exceeding six months shall be treated as a complete year.

(5) All fees or remuneration received by an officer in connection with the preparation of the jurors' book or the register of electors shall subject to a reasonable deduction for any expenses incurred by the officer be regarded as part of the emoluments of the officer for the purpose of compensation.

(6) If any officer was temporarily absent from his employment during the war whilst serving in His Majesty's forces or the forces of the allied or associated powers either compulsorily or with the sanction or permission of the local authority such period of temporary absence shall be reckoned as service under the local authority in whose employment he was immediately before and after such temporary absence. Provided that in the case of an officer who after the armistice voluntarily extended his term of service in the forces no period of absence during such extension shall be so reckoned.

(7) The Corporation may in their discretion and in consideration of the fact that any officer was appointed to his office as a specially qualified person or of the fact that he had prior to his appointment served as a deputy assistant or clerk to any officer not holding a temporary appointment add any number of years (not exceeding ten) to the number of years which such officer would otherwise be entitled to reckon for the purpose of computing the compensation to which he would be entitled under the Acts and rules relating to Her Majesty's Civil Service as applied by this Act.

(8) The provisions of the section of this Act of which the marginal note is "Compensation to existing officers" and the foregoing provisions of this section shall apply to a teacher employed in a public elementary school maintained by the local education authority at the passing of this Act as if he were an officer employed by the authority :



Provided that—

A.D. 1928.

- (a) In the case of a teacher employed in a public elementary school maintained, but not provided by the authority the provisions with respect to an officer whose services are dispensed with shall only apply if such teacher be discharged by the authority or by the direction or with the consent of the authority (otherwise than for misconduct) within five years after the appointed day;
- (b) In the application of subsection (7) of section 120 of the Act of 1888 in the case of a teacher to whom a compensation allowance has been granted in pursuance of this section service in a public elementary school maintained but not provided by a local authority shall be deemed to be service in an office under that authority.

**52.** No officer shall be entitled to receive compensation under this Part of this Act for any direct pecuniary loss and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss. Compensation and superannuation.

**53.** Subject to any adjustment under section 62 of the Act of 1888 all rates not collected at the appointed day and levied by any rating authority upon any hereditament situate in the Heysham district shall be collected and recovered by the Corporation. Arrears of rates made by rating authorities.

**54.** No alteration effected by this Part of this Act shall cause to abate prejudicially affect or prevent any action cause of action or proceeding which at the appointed day is pending or existing by or against the county council the Heysham Council or the Lancaster Guardians affected by this Part of this Act or any contract deed bond agreement or other instrument (subsisting at the appointed day) entered into or made by any such council or board or their predecessors : Savings for actions contracts &c.

Provided that—

- (i) Any action cause of action or proceeding which at the appointed day is pending or existing by or against any such council or guardians in relation exclusively to any part of the added area may be continued prosecuted and



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enforced by or against the Corporation or the Lancaster Guardians (as the case may be); and

- (ii) All contracts deeds bonds agreements and other instruments (subsisting at the appointed day) entered into or made by any such council or guardians or their predecessors in relation exclusively to any part of the added area may be continued and enforced as fully and effectually as if instead of such council or guardians (or their predecessors) the Corporation or the Lancaster Guardians (as the case may be) had been a party thereto.

Burial Acts.

**55.** The Corporation shall be the burial board for the borough and shall have within the borough to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906 :

Provided that nothing in this Act shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired prior to the appointed day or prejudicially affect any right privilege or authority which immediately prior thereto is exerciseable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906 :

Provided also that subject to the provisions of this Act the scale of fees in force immediately before the appointed day in any burial ground which is transferred to the Corporation under this Act shall remain in force unless and until it is amended by the Corporation after the appointed day :

Provided also that no approval sanction or authorisation of the vestry of the parish of Morecambe and Heysham shall be required in respect of any act of the Corporation as burial board.

Saving for qualification of aldermen councillors &c.

**56.** An alderman councillor or guardian who is to continue in office after the appointed day shall not during his present term of office be deemed to lose his qualification by reason of the alterations of area made by this Part of this Act.

Saving for contribution orders and precepts.

**57.** Notwithstanding the alterations in the area of the district effected by this Part of this Act all contribution orders issued and precepts made before the appointed



day shall be as valid in law as if this Act had not been passed. A.D. 1928.

**58.** Nothing contained in this Part of this Act shall— Saving provisions.

- (a) be construed as restricting the powers of the Minister under the Acts relating to the relief of the poor or the powers of the Secretary of State the Minister the county council or the Corporation under the Act of 1888 or the Act of 1894;
- (b) affect the ecclesiastical divisions of any parish or prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment;
- (c) affect the provisions of the Act of 1925 save as in this Part of this Act expressly provided;
- (d) affect land tax and for the purposes of Imperial taxes or duties other than land tax the provisions of the section in this Part of this Act whereof the marginal note is "Alteration of parishes" shall not come into operation during any year in which under any enactment the annual value of any property adopted for the purpose of income tax under Schedules A and B for the preceding year is taken as the annual value of that property for the same purpose for that year.

**59.** Any reference in this Act to the provisions of the Education Act 1921 shall as respects any provision of that Act which may not be in operation at the appointed day be construed as a reference to the corresponding provision of the Education Acts 1870 to 1919 until such corresponding provision is repealed by the Education Act 1921. References to Education Act 1921.

### PART III.

#### WORKS LANDS AND IMPROVEMENT RATE.

**60.** Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the sea walls promenades street improvements and works in the Heysham district hereinafter described :— Power to execute works.



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Work No. 1 An improvement of the existing sea wall promenade and street known as Marine Road together with a protective wall commencing at a point on the existing promenade in line with the south side of Bold Street and terminating at a point on the said existing promenade in line with the north side of Sefton Road;

Work No. 2 A sea wall promenade protective wall street and road works commencing at the termination of Work No. 1 and terminating at a point in the existing sea wall in line with the south side of Snowden Avenue;

Work No. 3 A sea wall promenade protective wall street and road works commencing at the termination of Work No. 2 and terminating at the northern end of the existing public convenience opposite Rydal Road;

Work No. 4 A promenade retaining and protective walls on and adjoining the existing sea wall commencing at a point in line with the boundary fence sixty yards or thereabouts south-west of the southern side of Oakley Road and terminating at the southern end of the existing sea wall opposite Royds Avenue;

Work No. 5 A sea wall promenade retaining and protective walls commencing at the termination of Work No. 4 and terminating at the northern end of the existing sea wall opposite Whinnysty Lane.

Together with all necessary fences footways approaches retaining walls steps slipways sewers drains embankments railings groynes sluices culverts aprons lights works appliances and conveniences connected with or ancillary to the said works or any of them.

Commence-  
ment of  
Works Nos.  
1 2 and 3.

61. The Corporation shall commence the construction of Works Nos. 1 and 2 within six months and Work No. 3 within twelve months after the passing of this Act and shall proceed to complete all such works with all due diligence.

Corporation to  
act in consulta-  
tion with Hey-  
sham Council  
as to sea defence  
works.

62. During the period between the passing of this Act and the appointed day the Corporation shall act in consultation with the Heysham Council in all matters relating to the sea defence works authorised by this Act.



**63.** In the construction of the works authorised by this Part of this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding three feet either upwards or downwards : A.D. 1928.  
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Limits of deviation.

Provided that no deviation either lateral or vertical shall be made below high-water mark without the consent in writing of the Board of Trade.

**64.**—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connection with the works authorised by this Part of this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the said works and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such works or any of them and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section. Subsidiary works.

(2) Provided that the Corporation shall not alter divert or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the said Act.

**65.** If Works Nos. 1 2 and 3 are not completed within five years from the passing of this Act and if Works Nos. 4 and 5 are not completed within fifteen years from the passing of this Act then on the expiration of those periods respectively the powers granted by this Part of this Act for the making thereof respectively shall cease except as to so much thereof respectively as shall then be completed. Period for completion of works.



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Power to  
alter steps  
pipes areas  
&c.

**66.** Within the limits of deviation shown on the deposited plans the Corporation may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains and the pipes or wires for the purpose of conveying water gas or electricity to any house or other place and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 (Compensation in case of damage by local authority) of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Extinction  
of private  
rights of  
way.

**67.** All private rights of way over any lands which the Corporation are authorised by this Act to enter upon take and use shall as from the date of such entry taking or use be extinguished Provided that the Corporation shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Carriage-  
way foot-  
way sewers  
and other  
works.

**68.** Subject to the provisions of this Act the Corporation may cause such parts of the works authorised by this Part of this Act to be laid out for carriageway and such parts thereof for footway as they may think proper and may upon the lands acquired by or vested in them under the powers of this Act and within the limits of deviation defined on the deposited plans construct erect and provide such vaults cellars arches sewers drains subways and other works and conveniences as they may think proper for the purposes of or in connection with the works.

Acquisition  
of lands.

**69.—**(1) Subject to the provisions and for the purposes of this Act the Corporation may enter upon take and use all or any part of the lands and foreshore delineated on the deposited plans and described in the deposited book of reference.

(2) No compensation shall be payable by the Corporation in respect of the private road known as Marine Parade or any foreshore entered upon taken or used for the purposes of Works Nos. 1 2 and 3 or in respect



of any work or structure erected thereon or laid or constructed therein or appertaining thereto. A.D. 1928.

(3) No compensation shall be payable by the Corporation in respect of any enhancement in value of any lands which the Corporation are authorised to acquire under the powers of this Act by reason of any works carried out or to be carried out by the Corporation under this Part of this Act.

(4) The tribunal in assessing the amount of compensation to be paid by the Corporation in respect of lands or foreshore acquired for the purpose of Work No. 4 shall give consideration to the value of the fabric of the existing wall in respect of the use to be made thereof in the carrying out of Work No. 4 :

Provided that if any person or group of persons with the approval of the Corporation expend any money in necessary repairs or renewals to the existing sea defence works or in constructing new defence works after the date of the passing of this Act and before the Corporation have exercised their power of entry in the case of land which they are authorised to take for Works Nos. 1 2 and 3 and before they have served notice to treat in the case of land which they are authorised to take for Works Nos. 4 or 5 the Corporation when they exercise such right of entry shall repay to such person or group of persons the money so expended.

**70.** The Corporation and their surveyors officers agents contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken and used as aforesaid or any of them for the purpose of surveying and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Power to enter upon property for survey and valuation.

**71.** The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the thirty-first day of October one thousand nine hundred and thirty-one.

Period for compulsory purchase of lands.



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*Act, 1928.*

A.D. 1928.  
—  
Application  
of certain  
provisions  
of Act of  
1924 to  
lands.

**72.**—(1) The following provisions of the Act of 1924 shall extend and apply to and for the purposes of this Part of this Act as if those provisions were with any necessary modifications re-enacted in this Act (namely) :—

Section 7 (Correction of errors in deposited plans and book of reference);

Section 8 (Compensation in case of recently acquired interest);

Section 9 (Acquisition of easements);

Section 10 (Persons under disability may grant easements &c.);

Section 13 (Proceeds of sale of surplus lands).

(2) Provided that the said section 8 (Compensation in case of recently acquired interest) of the Act of 1924 shall for the purposes of such application have effect as if the eleventh day of April one thousand nine hundred and twenty-eight were therein mentioned instead of the seventeenth day of November one thousand nine hundred and twenty-three.

For protec-  
tion of  
Oxcliffe  
Estate  
Company.

**73.** For the protection of the Oxcliffe Estate Company or other the owner or owners for the time being of the properties numbered on the deposited plans 8 and 11 in the parish and urban district of Heysham (all of whom are in this section referred to as "the owner") the following provision shall unless otherwise agreed between the owner and the Corporation apply and have effect (that is to say) :—

The Corporation shall not commence to construct Work No. 4 by this Act authorised until they shall have acquired the whole of the said property numbered 8 and so much of the said property numbered 11 as is within the limit of land to be acquired shown on the said deposited plans.

For protec-  
tion of Tom  
Wall.

**74.** For the protection of Tom Wall or other the owner or owners for the time being of the property numbered on the deposited plan 7 in the parish and urban district of Heysham (all of whom are in this section referred to as "the owner") the following provision



shall unless otherwise agreed between the owner and the Corporation apply and have effect (that is to say) :—

The Corporation shall not commence to construct Work No. 4 by this Act authorised until they shall have acquired the said property numbered 7 as aforesaid.

**75.** Notwithstanding anything contained in the Improvement rate, Act of 1925—

(1) For defraying part of the expenditure of the Corporation of and incident to the construction of the works authorised by this Part of this Act the owners for the time being of the respective lands (whether respectively occupied or unoccupied) mentioned in the first column of the following table shall throughout the respective periods during which the Corporation are required to pay interest upon and to provide for the repayment of money borrowed under the section of this Act of which the marginal note is “Power to borrow” for the construction of the works mentioned in the second column thereof pay to the Corporation on the first day of July in every year a yearly sum or rate in this Act called “the improvement rate” mentioned in the third column of the said table on the rateable value of the said lands ascertained by the valuation list for the time being in force :—

| Lands.                                                        | Works in respect of which rates are payable. | Amount of rate payable.                                                                                                                                                                                                                                                            |
|---------------------------------------------------------------|----------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Owners of lands in Part I of the Fourth Schedule to this Act. | Work No. 1                                   | Such an amount as shall be equal to one-sixth part of the sums payable in that financial year by the Corporation for interest upon and for the repayment of money borrowed for the construction of Work No. 1 but not exceeding a rate of two shillings and sixpence in the pound. |



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A.D. 1928.

| Lands.                                                          | Works in respect of which rates are payable. | Amount of rate payable.                                                                                                                                                                                                                                                                    |
|-----------------------------------------------------------------|----------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Owners of lands in Part II of the Fourth Schedule to this Act.  | Works Nos. 2 and 3.                          | Such an amount as shall be equal to one-sixth part of the sums payable in that financial year by the Corporation for interest upon and for the repayment of money borrowed for the construction of Works Nos. 2 and 3 but not exceeding a rate of two shillings and sixpence in the pound. |
| Owners of lands in Part III of the Fourth Schedule to this Act. | Work No. 4                                   | Such an amount as shall be equal to one-sixth part of the sums payable in that financial year by the Corporation for interest upon and for the repayment of money borrowed for the construction of Work No. 4 but not exceeding a rate of two shillings and sixpence in the pound.         |
| Owners of lands in Part IV of the Fourth Schedule to this Act.  | Work No. 5                                   | Such an amount as shall be equal to one-sixth part of the sums payable in that financial year by the Corporation for interest upon and for the repayment of money borrowed for the construction of Work No. 5 but not exceeding a rate of two shillings and sixpence in the pound.         |

Provided that the improvement rate shall not be payable by the owners of the lands mentioned in the foregoing table in respect of any period prior to the completion of the work in respect of which the rate is payable and the date of the completion of each work shall be such date as shall be certified by the surveyor.

- (2) The improvement rate shall be a charge on the said lands and be recoverable in the same manner and with the same incidents as private improvement expenses and private improvement rates are charged and recoverable under the provisions of the Public Health Acts.



- (3) The improvement rate in respect of any lands shall be redeemable at any time by the owner liable to the payment thereof on payment by him to the Corporation of such capital sum as may be agreed on between the Corporation and such owner. A.D. 1928. —
- (4) The Corporation shall apply every such capital sum in extinguishment of loans raised by them under the powers of this Act for the purchase of lands for and the construction of the said works and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except to such extent and upon such terms as may be approved by the Minister.
- (5) The Corporation shall keep a separate account of the income and expenditure attributable to or arising in connection with the said works and the excess of the said expenditure over and above the produce of the rate aforesaid and the cost of maintaining the said works and the other expenses incurred in connection therewith shall be paid out of the general rate fund and the general rate.

#### PART IV.

##### POWER TO CORPORATION TO ACQUIRE PORTIONS OF MORECAMBE HARBOUR.

**76.** Subject to the provisions of this Act the Corporation may acquire by agreement from the London Midland and Scottish Railway Company (in this section called "the company") on such terms and conditions as may be agreed the pier harbour jetty foreshore lands sidings and works of the company situate in the borough and known as Morecambe Harbour (hereinafter in this Part of this Act referred to as "the harbour") or such portion or portions thereof as may be agreed and on such acquisition by the Corporation all powers rights duties and obligations with regard to the harbour shall cease and determine so far as the same relate to the portion or portions thereof purchased by the Corporation under the powers of this section. Provided that the powers duties and obligations of the company with regard to the existing lighthouse and lights erected on the portion or

Power to  
Corporation  
to acquire  
portions of  
Morecambe  
Harbour.



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A.D. 1928. — portions of the harbour so purchased by the Corporation shall on such acquisition be transferred to and shall be exerciseable performed and observed by the Corporation who shall within the limits of the portion or portions of the harbour so purchased be a local lighthouse authority for the purposes of the Merchant Shipping Act 1894 and the Corporation shall deposit a map defining such limits with the Board of Trade and the Corporation of Trinity House of Deptford Strond within two months of the completion of the purchase of the portion or portions of the harbour so acquired.

Nothing in this section contained shall affect the agreements dated respectively the twenty-first day of December one thousand nine hundred and six and the ninth day of February one thousand nine hundred and fourteen and made between the Company of the one part and Thos. W. Ward Limited of the other part.

Power to Corporation to appropriate site of harbour acquired.

**77.** After they have acquired the harbour or portion or portions thereof as mentioned in the last preceding section of this Act the Corporation may appropriate the site thereof for such purposes as they think fit and the Ministry of Health may sanction :

Provided that the Postmaster-General may if he so desires (without derogation from any other right vested in him) remove from the harbour or portion or portions thereof any telegraphic line (as defined by the Telegraph Act 1878) which is in under upon along over or across the same and the Corporation shall pay to the Postmaster-General the expenses incurred by him of and incidental to the removal of such telegraphic line or of any telegraphic line connected therewith which in consequence will be rendered useless and the substitution of a telegraphic line in such other place as the Postmaster-General may require.

PART V.

FINANCE.

Expenses of execution of Act.

**78.** All expenses incurred by the Corporation in carrying into execution the provisions of this Act (except such expenses as are to be paid out of borrowed money) shall be paid out of the general rate fund and the general rate.



**79.**—(1) The Corporation may from time to time independently of and in addition to any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table which shall be deemed to be the prescribed periods for the purposes of the enactments applied by this Act (namely) :—

A.D. 1928.

Power to borrow.

| 1                                                                                                                                                                                       | 2                  | 3                                                     |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|-------------------------------------------------------|
| Purpose.                                                                                                                                                                                | Amount.            | Period for Repayment.                                 |
|                                                                                                                                                                                         | £                  |                                                       |
| (a) For the purpose of making any payment to the county council or to any other authority under Part II of this Act or under any enactment the provisions of which are applied thereby. | The sum requisite. | Forty-five years from the date or dates of borrowing. |
| (b) For the purpose of making any payment under the provisions of the section of this Act of which the marginal note is "Compensation to existing officers."                            | The sum requisite. | Twenty years from the date or dates of borrowing.     |
| (c) For the construction of Work No. 1                                                                                                                                                  | 1,500              | Thirty years from the date or dates of borrowing.     |
| (d) For the purchase of land for and for the construction of Work No. 2.                                                                                                                | 22,000             | Sixty years from the date or dates of borrowing.      |
| (e) For the purchase of land for and for the construction of Work No. 3.                                                                                                                | 22,000             | Sixty years from the date or dates of borrowing.      |
| (f) For the purchase of land for and for the construction of Work No. 4.                                                                                                                | 6,000              | Forty years from the date or dates of borrowing.      |
| (g) For the purchase of land for and for the construction of Work No. 5.                                                                                                                | 14,700             | Sixty years from the date or dates of borrowing.      |
| (h) For the purchase of a portion of Morecambe Harbour and for defraying the costs and expenses incident to such purpose.                                                               | 34,500             | Sixty years from the date or dates of borrowing.      |
| (i) For paying the costs charges and expenses of obtaining this Act as hereinafter defined.                                                                                             | The sum requisite. | Five years from the passing of this Act.              |



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A.D. 1928.

(2) (a) The Corporation may also with the consent of the Minister borrow such further money as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by section 15 (Power to use one form of mortgage for all purposes) of the Act of 1918.

Application  
of sections  
of Act of  
1924 as to  
borrowing.

80. The following sections of the Act of 1924 shall extend and apply to the moneys borrowed under and to the purposes of this Act as if those provisions were with all necessary modifications re-enacted (namely) :—

Section 140 (Incorporation of financial provisions of Act of 1918);

Section 142 (As to section 234 of Public Health Act 1875);

Section 146 (Application of money borrowed).

PART VI.

MISCELLANEOUS.

Application  
of certain  
provisions  
of Act of  
1924 to  
promenades  
&c.

81. The provisions of section 116 (Prohibition of touting and hawking on promenade &c. and on seashore) section 117 (Penalty for unauthorised erection of booths &c.) section 118 (Prohibiting public speeches &c. on promenade &c.) and section 119 (Byelaws as to promenade &c.) of the Act of 1924 shall apply to the promenades authorised by this Act and to the seashore and the approaches to the seashore in the Heysham district.

Sand &c.  
not to be  
removed  
from sea-

82. Any person who at any time digs carries away or removes any sand gravel shingle rock soil or other material from the seashore in front of any of the works by this Act authorised without having first obtained the



licence in writing of the Corporation or who having obtained such licence digs carries away or removes any sand gravel shingle rock soil or other material from any part of the seashore mentioned in this section or in any quantity or manner other than the part quantity or manner permitted by such licence shall for every such offence be liable to a penalty not exceeding twenty pounds.

A.D. 1928.

—  
 shore with-  
 out licence  
 of Corpora-  
 tion.

**83.** Notwithstanding any discontinuance of the working of the tramways of the Corporation as part of their tramway undertaking and the removal of the tramways so discontinued the provisions of any Acts or Orders of the Corporation relating to omnibuses as part of their tramway undertaking shall continue to have full force and effect with respect to such omnibuses as if the tramways were still being worked.

Provisions  
 as to omni-  
 buses when  
 tramways  
 discon-  
 tinued.

**84.** The following provisions for the protection of the company as hereinafter defined shall apply and have effect (that is to say) :—

For protec-  
 tion of  
 Ribble  
 Motor  
 Services  
 Limited  
 and County  
 Motors  
 (Lancaster)  
 Limited.

(1) In this section—

“the company” means the Ribble Motor Services Limited and the County Motors (Lancaster) Limited or either of them and includes their respective successors and assigns;

“the company’s existing omnibus routes” means the routes coloured red on the map signed in duplicate by Harold Edward Hickmott on behalf of the company and the town clerk on behalf of the Corporation of which map one copy has been deposited with the town clerk and the other has been retained by the Ribble Motor Services Limited;

“the Corporation’s existing omnibus routes” means the routes coloured blue on the said map :

(2) Notwithstanding anything contained in the Act of 1918 or this Act the Corporation shall not by themselves or in conjunction with any authority company body or person run omnibuses on any route in the borough other than the Corporation’s existing omnibus routes and such other routes (if any) as may from time to



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time be agreed with the company or determined by the Minister of Transport :

- (3) When licensing omnibuses to ply for hire within the borough the Corporation shall have due regard to the claims of the company to run omnibuses on the company's existing omnibus routes and on any route (including a proposed new route between Higher Heysham and Heysham Harbour) connecting any of the company's existing omnibus routes with the said harbour :
- (4) The company shall not by themselves or in conjunction with any authority company body or person run omnibuses on any route in the borough other than the company's existing omnibus routes therein and such routes (if any) as may be agreed with the Corporation or failing agreement be determined by the Minister of Transport :
- (5) If any dispute or difference arises under the provisions of this section the same shall be referred to the Minister of Transport who shall have power to make such order thereon as he thinks fit and every order made by him under this section shall be final and binding on the parties affected thereby.

Inquiries by  
Minister of  
Transport.

**85.** In respect of the exercise of any powers or duties conferred or imposed on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Corporation the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

For protec-  
tion of Corpo-  
ration of  
Trinity  
House.

**86.** Nothing in this Act contained shall prejudice or affect the powers rights and privileges of the Corporation of Trinity House of Deptford Strond.

Abatement  
of work  
abandoned  
or decayed.

**87.—**(1) Where any work constructed by the Corporation under the powers of this Act and situate wholly or partially on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable



river communicating therewith below high-water mark of ordinary spring tides is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the Corporation at their own expense to repair and restore such part of such work as is situate below high-water mark of ordinary spring tides or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper. A.D. 1928.

(2) If during the period of thirty days from the date when the notice is served upon the Corporation they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the Corporation and the amount of such expense shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

**88.** The following sections of the Act of 1924 are incorporated with this Act and shall extend and apply thereto as if those sections with all necessary modifications were re-enacted in this Act (namely):— Incorporation of sections of Act of 1924.

- Section 164 (Power of entry);
- Section 165 (General provisions as to byelaws);
- Section 179 (Compensation how to be determined);
- Section 180 (Powers of Act cumulative);
- Section 181 (Application of Arbitration Act 1889);
- Section 182 (Saving for indictments &c.);
- Section 183 (Application of section 265 of Public Health Act 1875);
- Section 184 (Judges not disqualified);
- Section 185 (Works below high-water mark not to be constructed without consent of Board of Trade);
- Section 186 (Provision against danger to navigation);
- Section 187 (Survey of works by Board of Trade);
- Section 188 (Crown rights);
- Section 189 (Saving rights of duchy of Lancaster).



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*Act, 1928.*

A.D. 1928.  
Repeals.

**89.** The following provisions of the Morecambe Corporation Act 1924 are hereby repealed (that is to say) :—

Section 58 (Corporation to make communications between private drains and their sewers on payment &c.);

Section 72 (Prevention of contact with body of person dying of infectious disease);

Section 74 (Medical inspection of inmates of common lodging-houses &c. when infectious disease prevails);

Section 75 (Power to close infectious common lodging-houses);

Section 82 (Rag and bone dealers not to sell food or bladders and balloons);

Section 83 (As to contamination of sausages and other foods);

Section 84 (Conditions applicable to premises used for sale &c. of food);

Paragraphs (a) and (b) of subsection 1 of section 85 (For regulating manufacture and sale of ice-cream &c.);

Section 87 (Places used for storage &c. of human food not to be used as sleeping places);

Section 103 (Byelaws as to family and mixed bathing);

Section 105 (Charge for use of parts of recreation grounds &c. set apart for certain purposes);

Section 111 (As to public vehicles plying for hire at railway stations);

Section 113 (Power to regulate omnibus routes).

Costs of  
Act.

**90.** All the costs charges and expenses of the Corporation and of the Heysham Council preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose.



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Act, 1928.

The SCHEDULES referred to in the  
foregoing Act.

A.D. 1928.

THE FIRST SCHEDULE.

PART I.  
LOCAL ACTS.

| Session and Chapter.    | Short Title.                                         |
|-------------------------|------------------------------------------------------|
| 63 & 64 Vict. c. lxiii. | The Morecambe Urban District Council (Gas) Act 1900. |
| 8 & 9 Geo. 5. c. xx.    | The Morecambe Corporation Act 1918.                  |
| 14 & 15 Geo. 5. c. lv.  | The Morecambe Corporation Act 1924.                  |

PART II.

CONFIRMATION ACTS AND ORDERS.

| Session and Chapter.     | Short title.                                                         | Order.                                                        |
|--------------------------|----------------------------------------------------------------------|---------------------------------------------------------------|
| 60 & 61 Vict. c. lxvi.   | Electric Lighting Orders Confirmation (No. 6) Act 1897.              | The Morecambe Electric Lighting Order 1897.                   |
| 60 & 61 Vict. c. clii.   | Tramways Orders Confirmation (No. 2) Act 1897.                       | The Morecambe Urban District Council Tramways Order 1897.     |
| 9 Edw. 7. c. cxliii.     | Tramways Orders Confirmation Act 1909.                               | The Morecambe Corporation Tramways Order 1909.                |
| 11 & 12 Geo. 5. c. xcvi. | Ministry of Health Provisional Orders Confirmation (No. 8) Act 1921. | The Morecambe Order 1921.                                     |
| 12 & 13 Geo. 5. c. lii.  | Tramways Order Confirmation Act 1922.                                | The Morecambe Corporation Tramways Order 1922.                |
|                          |                                                                      | The Morecambe Electricity (Extension &c.) Special Order 1923. |
|                          |                                                                      | The Morecambe Gas (Charges) Order 1923.                       |
|                          |                                                                      | The Morecambe Gas Order 1924.                                 |



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THE SECOND SCHEDULE.

WARDS FOR THE ELECTION OF COUNCILLORS OF THE  
 BOROUGH AND OF GUARDIANS FOR THE PARISH OF  
 MORECAMBE AND HEYSHAM.

EXISTING WARDS.

Alexandra Ward.  
 Harbour Ward.  
 Victoria Ward.  
 Poulton Ward.  
 Torrisholme Ward.  
 Parks Ward.

NEW WARDS IN THE ADDED AREA.

Heysham North Ward.  
 Heysham Central Ward.  
 Heysham South Ward.

THE THIRD SCHEDULE.

Differential Rating in Added Area.

| Year ending 31st March. |       |       |       |       |       |       |       |       |       |       |       |
|-------------------------|-------|-------|-------|-------|-------|-------|-------|-------|-------|-------|-------|
| 1930.                   | 1931. | 1932. | 1933. | 1934. | 1935. | 1936. | 1937. | 1938. | 1939. | 1940. | 1941. |
| s. d.                   | s. d. | s. d. | s. d. | s. d. | s. d. | s. d. | s. d. | s. d. | s. d. | s. d. | s. d. |
| 2 6                     | 2 6   | 2 6   | 2 6   | 1 8   | 1 8   | 1 8   | 1 8   | 0 10  | 0 10  | 0 10  | 0 10  |



THE FOURTH SCHEDULE.

A.D. 1928.

PART I.

The lands property and houses shown on the deposited plans of which the seaward or western boundary is the foreshore of the Irish Sea the northern boundary Bold Street the eastern boundary an imaginary line drawn from the north-eastern corner of the Battery Hotel along the western boundary of Heysham Road to the northern boundary of Sefton Road thence in a westerly direction along the northern boundary of Sefton Road thence in a straight line across Marine Parade to the foreshore of the Irish Sea at the termination of Work No. 1.

PART II.

The lands property and houses shown on the deposited plans of which the seaward or western boundary is the foreshore of the Irish Sea the northern boundary an imaginary line drawn from the commencement of Work No. 2 across Marine Parade to and along the northern boundary of Sefton Road the eastern boundary an imaginary line drawn along the western boundary of Heysham Road to the centre of a street called Grosvenor Road (excluding the properties numbered on the deposited plans 30 to 41 inclusive) thence along the centre of Grosvenor Road to a point in line with the north-eastern corner of the Grosvenor Hotel building thence along the south-eastern side of the said hotel building to and along the western side of the back street immediately west of Clayton Road or Rydal Grove to and along the northern boundary of Rydal Road to the foreshore of the Irish Sea being the termination of Work No. 3.

PART III.

The lands property and houses shown on the deposited plans of which the seaward or western boundary is the foreshore of the Irish Sea and the north-eastern boundary is an imaginary line drawn from a point in the existing sea-wall in line with the boundary fence 60 yards or thereabouts south-west of the southern side of Oakley Road to and along the southern boundary of the residence known as Cliffe Hollow thence along the centre of the accommodation road to Seawell Avenue and thence in a straight line across Seawell Avenue thence in a southerly direction for 50 yards or thereabouts thence in a south-westerly direction for a distance of 35 yards or thereabouts and thence again in a southerly direction to and along the eastern boundary of the property known as Mallaranny to the northern side of Wright's Avenue or Ferncliffe Drive thence in a south-westerly



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A.D. 1928 direction across Wright's Avenue or Ferncliffe Drive to a point in line with the north-eastern corner of the house known as 12 Royds Avenue thence in a southerly direction to and along the centre of Royds Avenue to the foreshore of the Irish Sea being the termination of Work No. 4.

PART IV.

The lands property and houses shown on the deposited plans of which the seaward or western boundary is the foreshore of the Irish Sea the northerly boundary an imaginary line drawn from the commencement of Work No. 5 to and along the centre of Royds Avenue to a point in line with the south-eastern corner of the house known as 12 Royds Avenue thence in a southerly direction to the northern boundary of Whinnysty Lane and along the said northern boundary of Whinnysty Lane to the foreshore of the Irish Sea being the termination of Work No. 5.

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